

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Chief Judge Philip A. Brimmer

Civil Action No.: 16-cv-00447-PAB-KLM
Courtroom Deputy: Sabrina Grimm

Date: October 7, 2019
Court Reporter: Janet Coppock

Parties:

EDWARD JOHN NOSEWICZ,

Plaintiff,

v.

JEFFREY JANOSKO,

Defendant.

Counsel:

John Springer
Sean McDermott

J. Andrew Nathan
Marni Nathan Kloster

COURTROOM MINUTES

JURY TRIAL – DAY 1

8:03 a.m. Court in session.

Appearances of counsel.

Also present at seated at Plaintiff's counsel table, Kristin Miller.

Discussion regarding scheduling, trial procedures, opening statements, and other preliminary matters.

8:24 a.m. Court in recess.

8:50 a.m. Court in session.

Jurors present. Fifteen jurors seated in the jury box.

Court's preliminary remarks and introduction of staff, counsel, and parties.

All jurors sworn for voir dire.

9:02 a.m. Voir dire by Court.

9:10 a.m. Court reads the statement of the case. Voir dire continues.

9:51 a.m. Voir dire by Mr. McDermott.

10:07 a.m. Voir dire by Mr. Nathan.

Court instructs jurors. Jurors excused.

10:18 a.m. Court in recess.

10:33 a.m. Court in session.

Jurors present.

10:33 a.m. to 10:34 a.m. Bench conference: Counsel pass the jury for cause.

Jurors excused for cause:

- 1) 100395616
- 2) 100421211

Plaintiff's challenges:

- 1) 100420409
- 2) 100392067

Defendant's challenges:

- 1) 100405513
- 2) 100413063
- 3) 100411710

10:40 a.m. Nine jurors selected to try the case:

- 1) 100397737
- 2) 100381052
- 3) 100407247
- 4) 100418115
- 5) 100409144
- 6) 100396426
- 7) 100384739
- 8) 100399203
- 9) 100422292

Jury panel sworn.

Court reads preliminary instruction to jurors.

11:02 a.m. Plaintiff's opening statement by Mr. McDermott.

11:13 a.m. Defendant's opening statement by Ms. Kloster.

11:26 a.m. to 11:26 a.m. Bench conference.

Court instructs jurors. Jurors excused.

Discussion regarding schedule of witnesses and taking witnesses out of order.

11:31 a.m. Court in recess.

1:08 p.m. Court in session.

Jurors present.

Plaintiff's witness, Sgt. Gregory Blevens, sworn.

1:11 p.m. Direct examination of Sgt. Blevens by Mr. McDermott.

1:15 p.m. Cross examination of Sgt. Blevens by Ms. Kloster.

1:17 a.m. to 1:19 a.m. Bench conference.

Continued cross examination of Sgt. Blevens.

1:22 p.m. Redirect examination of Sgt. Blevens by Mr. McDermott.

Plaintiff's witness, Dr. Julianna Batizy-Morley, sworn.

1:25 p.m. Direct examination of Dr. Batizy-Morley by Mr. McDermott.

Exhibit 1 is admitted.

1:33 p.m. Cross examination of Dr. Batizy-Morley by Ms. Kloster.

1:42 p.m. Redirect examination of Dr. Batizy-Morley by Mr. McDermott.

Plaintiff, Edward Nosewicz, sworn.

1:45 p.m. Direct examination of Mr. Nosewicz by Mr. McDermott.

Exhibits A-66, A-41, A-42, A-43, A-44, A-45, 12, A-30, 4, 5, 6, 7, and 8 are admitted.

Jurors excused.

2:42 p.m. Court in recess.

2:56 p.m. Court in session.

Discussion regarding testimony from Sgt. Blevens and reduction in conviction.

3:06 p.m. Jurors present.

3:06 p.m. Cross examination of Mr. Nosewicz by Mr. Nathan.

3:12 p.m. Reference to the November 18, 2016 deposition transcript of Mr. Nosewicz.

3:36 p.m. Reference to the December 8, 2016 deposition transcript of Mr. Nosewicz.

Exhibits A-10, A-39, and A-40 are admitted.

Jurors excused.

4:06 p.m. Court in recess.

4:17 p.m. Court in session.

Discussion regarding stipulations.

4:19 p.m. Jurors present.

4:19 p.m. Continued cross examination of Mr. Nosewicz by Mr. Nathan.

Exhibit A-56 is admitted.

4:41 p.m. to 4:43 p.m. Bench conference.

Exhibit A-46 is admitted.

4:52 p.m. Reference to the December 22, 2016 deposition transcript of Mr. Nosewicz.

Court instructs jurors. Jurors excused until October 8, 2019 at 8:30 a.m.

Discussion regarding scheduling.

5:05 p.m. Court in recess.

Trial continued.

Total in-court time: 6:19